

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 13, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Segrave and Mr. Esquibel, item #16 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Segrave, item #17 was removed from the Consent Agenda. Upon request by Mr. Cook, and pursuant to support received by Mr. Roybal and Mr. Segrave, item #27(e) was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Dr. Aldrich and Mr. Esquibel, item #28(a) was removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 23, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to receive comments and input for a bar and grill application filed with the City Clerk’s Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1802 Dell Range Blvd. Suite 3, Cheyenne, WY. Public comment was made by: Steve Jimenez, General Manager, Wyoming Horse Racing. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook, Mr. Laybourn and Mr. Roybal. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to receive comments and input to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the City-initiated annexation of 51 parcels of land totaling 100.56 acres comprised of various tracts of land situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road. Public comment was made by: April Brimmer Kunz, Jack Knudson, Gloria Milmont, Abe DeHerrera, Booyong Kim and Bill Weaver. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –3rd READING – Creating Section 12.04.240, Mobile Storage Containers on Public Right-of-Way; Permit Required, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming and making a conforming amendment as specified. (Postponed from October 23, 2023). Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. White moved to postpone to November 27, 2023, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. Comment was made by the following member of the governing body: Mr. Cook.

ORDINANCE –3rd READING – Amending Section 2.04.020, Mayor-Election-Term of Office, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the employment status of persons hired in the Mayor’s office. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Cook. (#4529)

ORDINANCE –2nd READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Sunnyside Addition, 10th Filing. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development. Mr. Cook moved to approve on second reading, seconded by Mr. White. Mr. Cook moved to postpone to November 27, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Laybourn and Dr. Rinne.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business and HR High-Density Residential to MUB Mixed-Use Business for land located northwest of the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classifications of AG Agricultural LR - Low Density Residential, MR - Medium Density Residential, CB - Community Business, and MUR - Mixed-Use Residential for land annexed to the City of Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for a City-initiated annexation of tracts of land in Township 14 North, Range 67 West of the 6th p.m. for an area generally located west of Interstate 25, north of State Highway 210, east of Roundtop Road, and south of Horse Creek Road. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion failed. Voting “no” – all members of the governing body. Public comment was made by: Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson and Mr. Segrave.

[CA] RESOLUTION – To adopt the Certificate of Canvass and Declaration of Results of the Canvassing Board for the Cheyenne Downtown Development Authority District Special Election held October 18, 2023. Motion (per Consent Agenda) carried. (#6361)

RESOLUTION – Certifying the Van Buren Corridor Plan and adopting the Van Buren Corridor Plan as an amendment to the Connect 2045 of the Cheyenne Area Master Transportation Plan regarding the future design and reconstruction of Van Buren Avenue between Dell Range and Lincolnway. Mr. Cook moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Mr. Segrave. (#6362)

RESOLUTION – Certifying the Powderhouse Road Corridor Study and adopting the Powderhouse Road Corridor Study as an amendment to the Connect 2045 of the Cheyenne Area Master Transportation Plan regarding the future design and reconstruction of Powderhouse Road between Dell Range and US 82. Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comments were made by: Tristan Cordier, AVI. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson and Mr. Laybourn. (#6363)

RESOLUTION – Pursuant to Wyoming Statute § 15-9-107 finding and declaring parts of the Ridge and Holland area in the City of Cheyenne as blight and authorizing the redevelopment thereof. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comment was made by: Brad Emmons, AVI and Jason Stephen, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. Dr. Rinne raised a point of order relating to certain comments not being germane to the resolution. (#6364)

After a brief recess, Mayor Collins reconvened the meeting at 8:35 p.m.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Alliance Addition, 5th Filing, a Replat of Lots 1-17, Block 1, Alliance Addition, 4th Filing and a portion of Tract 12, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located west of Ridge Road, north of Jackson Street). Motion (per Consent Agenda) carried. Voting “yes” – all members of the governing body. (#6365)

RESOLUTION – Authorizing the Mayor to Execute a Settlement Agreement with WJE, LLC to resolve the April 6, 2023 Notice of Governmental Claim regarding an alleged taking of real property in Saddle Ridge adjacent to Christensen Road. Mr. White moved to adopt, seconded by Mr. Roybal. Mr. White moved to postpone to November 27, 2023, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body.

[CA] RESOLUTION – To provide salary adjustments to 116 non-uniformed employees identified through a wage matrix tool created to address pay disparity (Various City funds) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Acknowledging the adoption of the Wyoming Retirement System deferred compensation plan for full-time employees, adopting the deferred compensation plan for part-time employees, and further specifying the part-time employee plan enrollment method – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute §16-4-502 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer, purchase and sale of a specified portion of the property located at 503 West College Drive (Public Safety Infrastructure Fees) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor to sign a Final Plat for Sunnyside Addition, 13th Filing, a replat of Lot 2, Block 1, Sunnyside Addition, Tenth Filing, City of Cheyenne, Laramie County, Wyoming (located east of Cleveland Avenue and north of US 30) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located on a portion of the SW ¼ Section 13 to allow installation of on-site sewage holding tanks (septic system) located within Laramie County – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Memorandum of Understanding between the City of Cheyenne and the State Construction Department (SCD) to designate the Municipal Building as the primary emergency evacuation assembly area for the SCD). Motion (per Consent Agenda) carried. (#7853)

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for the FY 2023 Byrne Justice Assistance Grant to assist with community policing efforts. (BJA FY23 Edward Byrne Memorial Justice Assistance Grant Program). Motion (per Consent Agenda) carried. (#7854)

[CA] Agreement between the City of Cheyenne and WYDOT for a Wyoming Rural Public Transportation grant to assist in providing a local match for operating funds for the Transit Program for FY 2024 (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$300,000.00). (#7855)

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B program grant for FY 2024 (III-B Division on Aging Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$116,677.00). (#7856)

Development Agreement between the City of Cheyenne and Goat Systems, LLC, for the development of a data center campus and ancillary uses (Revenue to the City). Mr. Cook moved to approve, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated November 7, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body. Public comment was made by: Betsey Hale, Cheyenne LEADS. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. (#7857)

[CA] Agreement between the City of Cheyenne and WMC Cheyenne, LLC for a Drainage Easement granted to the City to ensure maintenance of a storm water conveyance system – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Cheyenne Depot Museum Inc regarding the charitable contribution from the David Donoho-A Friend of the #844 Fund, a fund of the Indianapolis Foundation to the Cheyenne Depot Museum to support the restoration of Old Sadie for the 15th Street Rail Project (Revenue to the City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District #1 for community counseling and crisis intervention services (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ardurra for the Charles Street Drainage and Roadway Improvements Design Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne, Cheyenne Fire Rescue Department, and the Wyoming Office of Homeland Security, FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2023 in the amount of \$109,000.00 to support ongoing training and equipment purchases for the Cheyenne Fire Rescue Regional Emergency Response Team 7 (RERT7) (Revenue to the City) – referred to Finance Committee.

Contract Modification #2 to Contract #6786 between the City of Cheyenne and Novo Benefits, LLC, to extend the term of the agreement for an additional (3) year period (Self Insurance Fund). Mr. Johnson declared a conflict of interest and vacated council chambers. Mr. White moved to approve in the amount of \$6,330.58, seconded by Dr. Aldrich. Mr. White moved to

amend the amount to not to exceed \$227,901.00, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6786)

[CA] Contract Modification #2 to Contract #7618 between the City of Cheyenne and T-O Engineers for the Transit Facility Site Plan (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$15,100.00). (#7618)

[CA] Consideration of Bid #S-5-24 for an Agreement between the City of Cheyenne and Arena Products and Services for the City of Cheyenne Ice and Events Center Evaporative Condenser Replacement Project (Ice and Events Center Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$106,153.15). (#7858)

[CA] Consideration of Bid #S-4-24 for an Agreement between the City of Cheyenne and Built Right LLC for the Cheyenne Kiwanis Community House Roof Replacement Project (General Fund Reserve & American Rescue Plan Federal Recovery Funds). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$179,000.00). (#7859)

[CA] Consideration to Purchase between the City of Cheyenne and Advanced Comfort Solutions for the purchase and installation of Fire Station Vehicle Exhaust Systems (General Fund & 2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$372,274.00).

No comments were made on the Voucher Report as presented.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:53 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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